

RESOLUTION NO. \_\_\_\_\_

**ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR HEIDUCK ADDITION, A REPLAT OF A PORTION OF TRACT 1, H AND B TRACTS, CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF INTERSTATE 80 AND SOUTHWEST DRIVE)."**

**WHEREAS,** Donald Heiduck, has subdivided said land in accordance with the statutes in such cases made and provided; and

**WHEREAS,** Donald Heiduck, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, and easements; and

**WHEREAS,** the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office; and

**NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT** the subdivision described as Heiduck Addition, a replat of a portion of Tract 1, H and B Tracts, Cheyenne, Laramie County, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

**PRESENTED, READ AND ADOPTED THIS \_\_\_\_\_ DAY OF \_\_\_\_\_, 2015.**

\_\_\_\_\_  
RICHARD L. KAYSEN, MAYOR

(SEAL)  
ATTEST:

\_\_\_\_\_  
CAROL INTLEKOFER, CITY CLERK

## **STAFF REPORT - SUMMATION**

### **Heiduck Addition**

Expedited Preliminary Plat Process

**CASE NUMBER:** UDC-15-00252

**SUBDIVISION CODE:** HIDK

**PREPARED BY:** Josh Tetzlaff

**MEETING DATES:** August 3, 2015 – Planning Commission  
August 24, 2015 – City Council

**REQUIRED DOCUMENTS SUBMISSION:** The following required documents have been submitted and reviewed by staff.

- Complete Application
- Preliminary Plat Map
- Final Plat Map
- Drainage Worksheet
- Transportation Worksheet
- Environmental Impact Assessment

**RECOMMENDATION:** The Development Department recommends approval of the Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

**PLANNING COMMISSION UPDATE (8/3/15):** At its regular meeting on August 3, 2015, the Planning Commission recommended approval of the Heiduck Addition Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

**CITY COUNCIL RECOMMENDATION:** The Development Department recommends approval of the Final Plat.

## STAFF REPORT

### Heiduck Addition

Expedited Preliminary Plat Process

**CASE NUMBER:** UDC-15-00252 **SUBDIVISION CODE:** HIDK  
**PREPARED BY:** Josh Tetzlaff  
**MEETING DATES:** August 3, 2015 – Planning Commission  
August 10, 2015 – City Council

**OWNER:** Donald Fred Heiduck 307.633.4750  
5631 White Bluff  
Cheyenne, WY 82009  
**AGENT:** Casey Palma 307.634.7273  
Steil Surveying Services, LLC  
1102 W. 19<sup>th</sup> Street  
Cheyenne, WY 82001

**PROJECT:** Heiduck Addition Expedited Plat

**LOCATION:**

1. Legal Description: a replat of a portion of Tract 1, H & B Tracts, situated in the NW¼ of Section 13, T.13N., R.66W., 6<sup>th</sup> P.M., Cheyenne, Wyoming
2. Location: the southeast corner of the intersection of I-80 and Southwest Drive
3. Address: N/A

**SIZE:** Total site: 22.38 acres

**CURRENT ZONING:** County LI Light Industrial

**PROPOSED ZONING:** LI Light Industrial

**EXISTING LAND USE:** Undeveloped

**PROPOSED LAND USE:** None Proposed

#### **SURROUNDING LAND USES:**

| <b>SURROUNDING</b> | <b>LAND USE(s)</b>      | <b>ZONING</b> | <b>ANNEXATION STATUS</b> |
|--------------------|-------------------------|---------------|--------------------------|
| North              | Interstate Highway ROW  | N/A           | County                   |
| South              | Undeveloped/Agriculture | County MU     | County                   |
| East               | Railroad ROW            | N/A           | County                   |
| West               | Undeveloped/Agriculture | PUD           | City                     |

### **EXPEDITED REVIEW:**

This plat is being pursued as an expedited application. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design and engineering issues. In other words proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Staff recommends allowing the plat to proceed as an expedited application.

### **EXECUTIVE SUMMARY:**

The expedited preliminary plat before you is for about 22 acres of land at the southeast corner of the intersection of Interstate 80 and Southwest Drive. This application was submitted with a zone change application to change the zone district to MUB Mixed-Use Business Emphasis and is following an annexation application that was recently approved by the Governing Body. The purpose of this plat application is to plat the land that was recently annexed land to prepare the land for sale.

There are a few noteworthy items about this property. Across the northwest portion of the subject property, Clear Creek enters the property. The applicant is proposing to put the current floodplain for Clear Creek on its own lot and to dedicate said lot to the City. This will create a lot, Lot 1, that is out of the current floodplain and able to be developed. Another note with this property is that there is an existing drainage easement on the property that the applicant would like to vacate with this plat. Any future drainage needs will be analyzed when a site plan is submitted with future development. Finally, while there is sanitary sewer currently in Southwest Drive, there is not an water nearby.

***Due to meeting the review criteria found in Section 2.1.2.d of the Cheyenne Unified Development Code (UDC), staff recommends approval of this expedited preliminary plat, advancing the final plat to the Governing Body.***

**PLAT DATA:** In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

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**PLAN CHEYENNE** - *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

Mixed-Use Residential is the designation given to the subject area within ShapeCheyenne, which has the future land use map within PlanCheyenne. Mixed-Use Residential areas are intended for a variety of housing options, diversifying both density and type of housing units. As a secondary use, Mixed-Use Residential also should include a mix of retail, offices, and light trade that are related to the neighborhood. The LI Light Industrial zone district can work within the Mixed-Use Residential area. LI Light Industrial has more restrictions on the uses allowed compared to HI Heavy Industrial. The restrictions include not allowing some uses as well as certain uses requiring more conditional use permits.

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**PLANNING** - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

Clear Creek runs across the northwest corner of the property. Within this plat, the applicant is proposing to plat off the existing 100 year floodplain and dedicating the lot containing the existing floodplain to the City for ownership and maintenance. There are not any new rights-of-way being proposed with this development.

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**STANDARDS** - *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

*Transportation Network:*

There are not any new rights-of-way proposed with plat. All lots should have access to Southwest Drive. The area is constrained from a transportation perspective with a busy Union Pacific railroad crossing to the north and the intersection of Southwest Drive and College Drive close to the interchange. Future development may be limited due to these constraints. The site plan process for future development will address traffic volumes on Southwest Drive.

*Community Facility Fees:*

*Park Fees:*

As outlined in Section 4.2.5.c.2&3 and Table 4-1, UDC, Park fees are calculated as follows:

Total Plat Area: 22.38 acres  
(less) ROW Area: 0 acres  
(equals) Park Fee Subject Area: 22.38 acres

Land Acquisition Fee = \$350 x 22.38 or \$7,833  
Infrastructure Fee = \$350 x 22.38 or \$7,833

**Total = \$15,666** payable in full at the time of the signing of the final plat.

Additionally, the Commercial Enhancement Fee of \$1,100 per acre (DU) is payable at the issuance of a building permit.

*Open Space:*

Open Space will be evaluated at the time of Site Plan according to the standards set forth by the Cheyenne UDC.

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**PHASING** - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

There are no proposed phases for this plat.

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**STUDIES** - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

A drainage worksheet and transportation worksheet were submitted with the application. After a review, the worksheets were found to be satisfactory by the Engineering Department.

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**ZONING** - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

The proposed Lot 1 will be buildable according to the proposed LI Light Industrial zone district. Should the property be zoned LI Light Industrial as the applicant is applying for, it should be able to meet the Intent and Applicability of the proposed zone district. Lot 2 is proposed to be dedicated to the City due to it including Clear Creek as well as the creek's 100 year floodplain.

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**SURROUNDING DEVELOPMENT** - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This plat should not create any undue influence on existing or potential development within the area.

**Reviewing Agencies w/ Comments:**

- City Engineer (Nathan Beauheim) **(FYI)**
  - o Industrial development on this parcel may be problematic due to the existing truck prohibition on Southwest Dr. between W. 5th St. and W. College Dr. In general, any land use that generates high traffic volumes is problematic due to the delays at the Southwest Dr./UPRR crossing to the north. We have documented instances of the crossing being

- blocked for more than 8 hours a day.
- City Surveyor (Jack Studley) **(FYI)**
  - o Boundary data and legal descriptions appear in order.
- County Assessor (Clarice Blanton) **(Correct Prior to Signing)**
  - o The title block states situated in the NW¼ of Sec. 13, T13N, R66W. This property is in the NW¼ and NE¼ of Sec 12-13-67.
- Development Department (Josh Tetzlaff) **(Correct Prior to Signing)**
  - o The City of Cheyenne delineates parcels by Lots and Blocks. Please change Tracts 1 & 2 to Lots 1 & 2, Block 1.
  - o Within the Title Block, please correct the word "situate" to "situated".
  - o The signature block needs to be updated for 2015.
  - o The vacation statement mentions easements being vacated as shown. Is the drainage easement the only easement being vacated? Please clarify on the plat.
- Engineering Department – General (Mike Vinson) **(Correct/Complete Prior to Signing)**
  - o Note 2 on the Preliminary and Final Plats refers to Flood Insurance Rate Map Number 56021C1113F. This Map Number appears to be incorrect. Please revise or justify.
- Engineering Department – GIS/Tech (Gary Stogsdill) **(Remove Prior to Signing)**
  - o I Don't think FEMA floodplain info is relevant to a plat map. Floodplains are known to change.
- Parks & Recreation Department (Teresa Moore) **(Add Prior to Signing)**
  - o Include public pedestrian access through Tract 2 stormwater detention and conveyance easement.
  - o Label Clear Creek.
- WyDOT (Randy Griesbach) **(FYI)**
  - o Based on the WYDOT I-25/I-80 Interchange Study, it appears there may be future impacts to the northwest corner of this property due to the I-25/I-80 ramp alignment.

#### **Reviewing Agencies w/o Comments:**

- Board of Public Utilities (Linda Gunter)
- Building Department (Amanda Barto)
- Charter (Kurt Quinlivan)
- Cheyenne Light, Fuel & Power (Jack Wyatt)
- Development Department (Brandon Cammarata)
- Engineering Department – General (Nathan Beauheim)
- Engineering Department – Traffic (Nathan Beaheim)
- Fire Department (Jim Schamerhorn)
- Laramie County School District #1 (Chris Hout)
- Suncor Pipeline (Megan Romano)
- Urban Planning (Matt Ashby)

#### **Reviewing Agencies not Responding:**

- CenturyLink (Bob Bates)
- County Attorney (Mark Voss)
- County Clerk (Vicki Swanson)
- Phillips Pipeline (David M. Soukup)

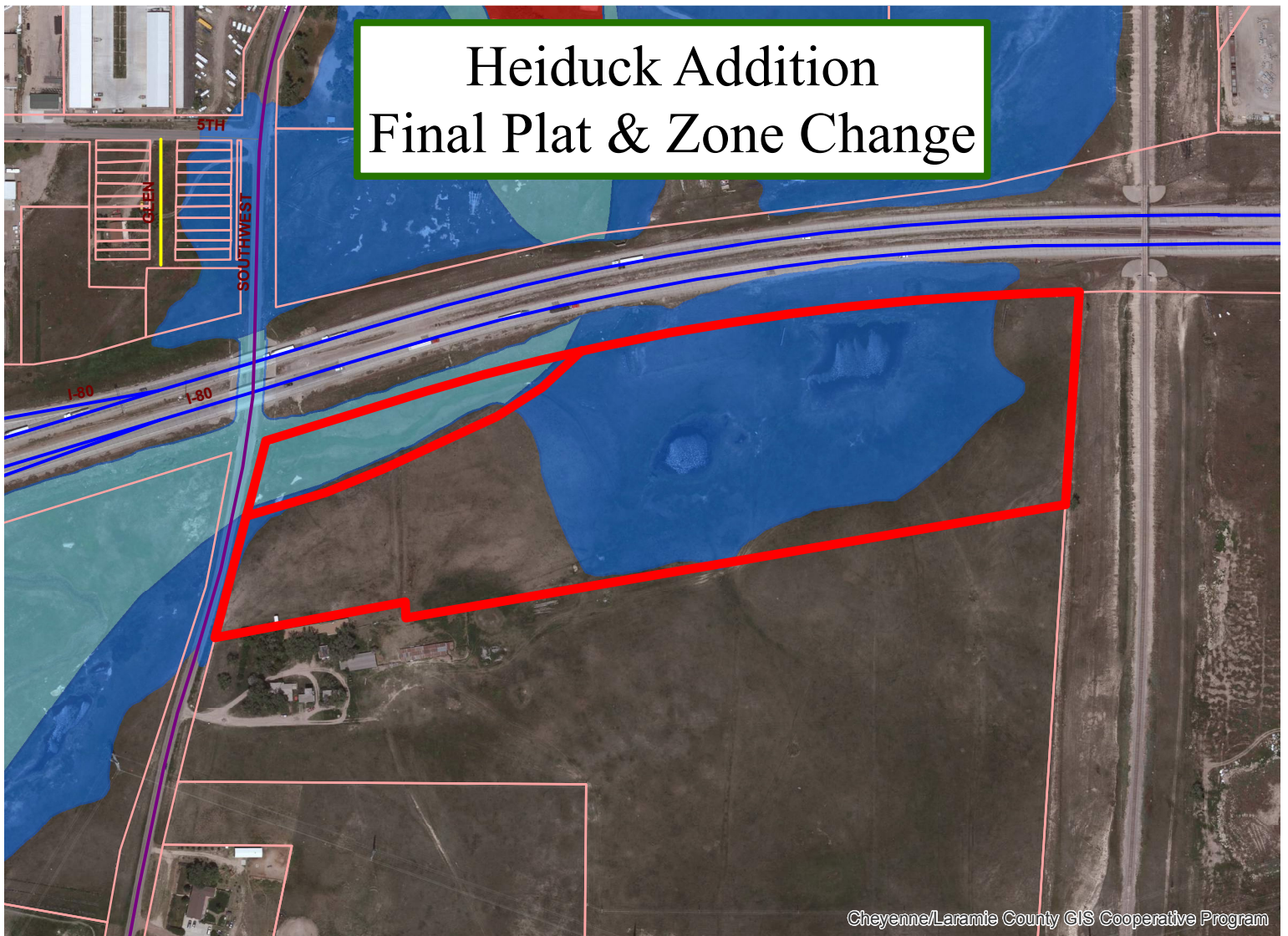
#### **Other Comments Received:**

- None

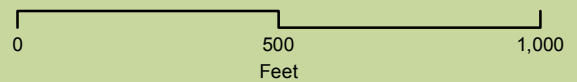
Encl: Preliminary Plat Map  
 Final Plat Map  
 Aerial Map

cc: Owner  
Agent/Applicant  
File

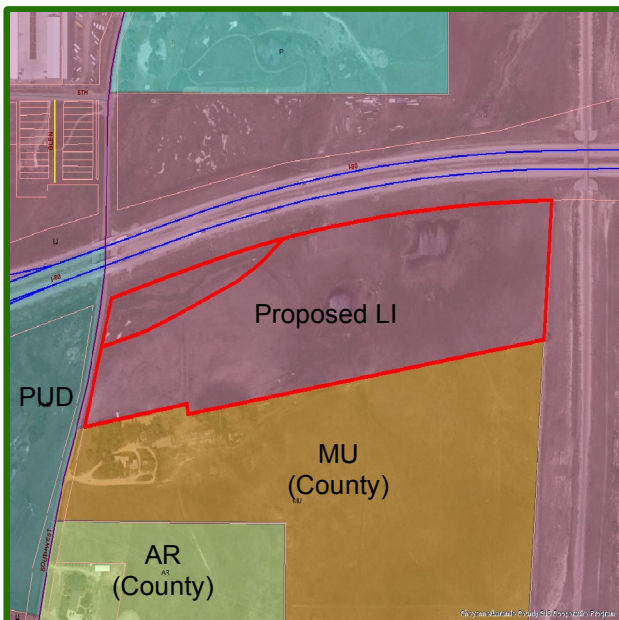
# Heiduck Addition Final Plat & Zone Change



Applicant: Donald Fred Heiduck  
Agent: Casey Palma, Steil Surveying Services  
Application Numbers  
Final Plat: UDC-15-00252  
Zone Change: UDC-15-00367

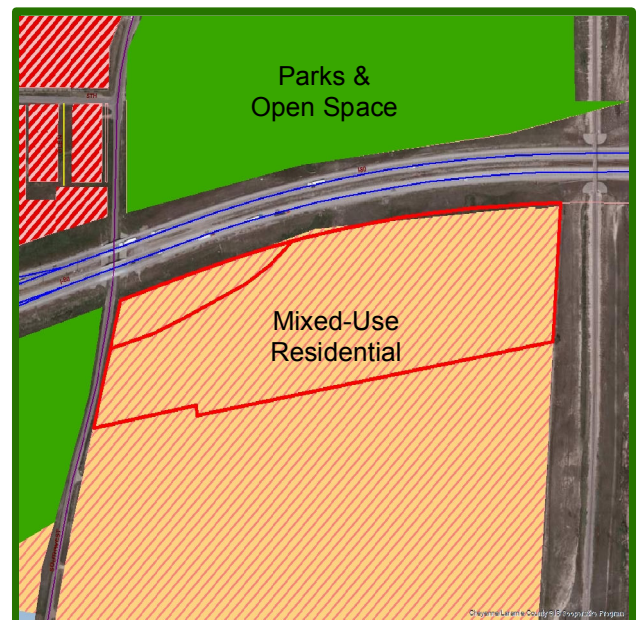


## Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

## Future Land Use

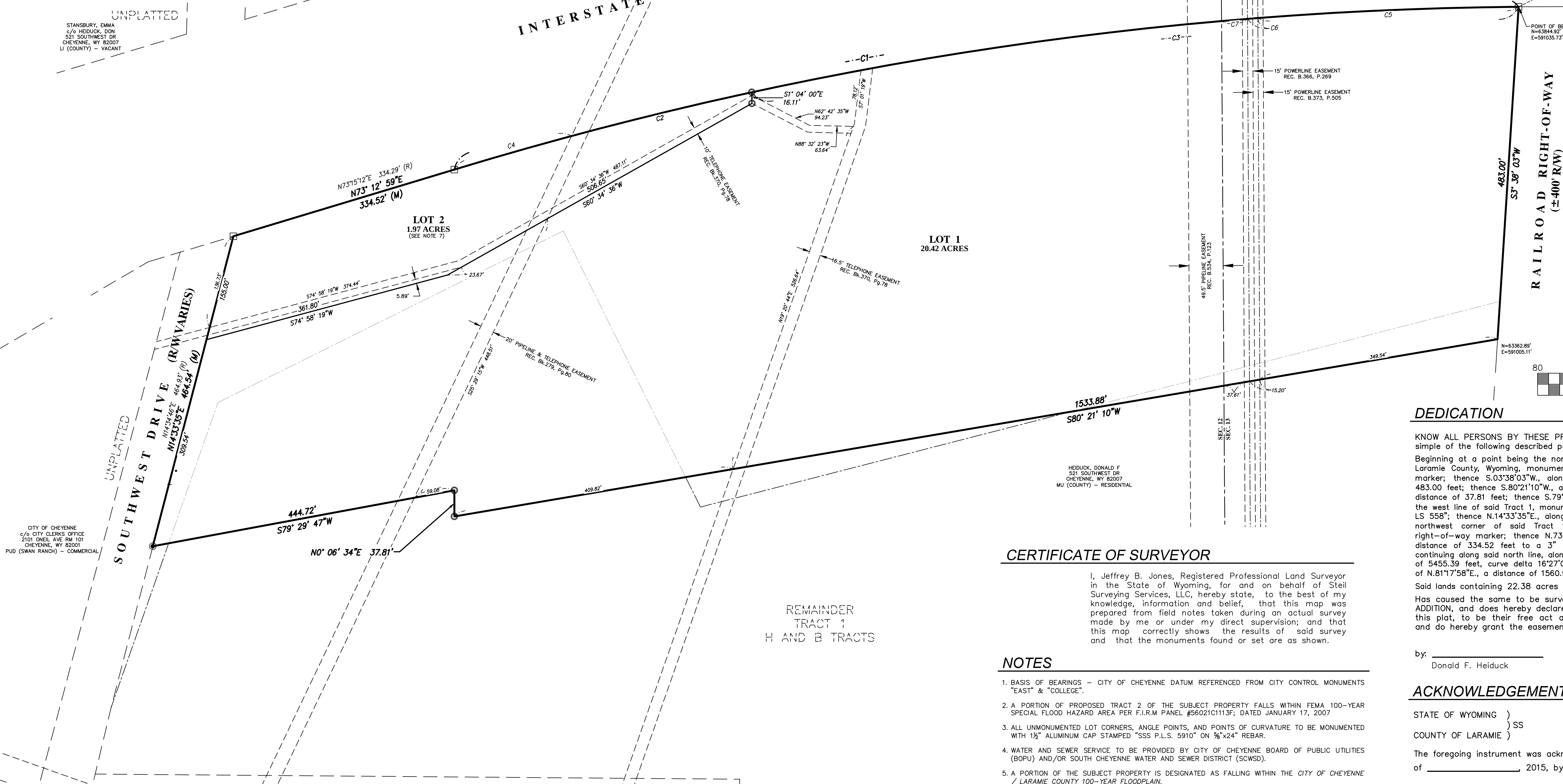


NO PROPOSED CENTRAL WATER SUPPLY SYSTEM - NO PROPOSED CENTRALIZED SEWAGE SYSTEM - FIRE PROTECTION TO BE PROVIDED BY CITY OF CHEYENNE FIRE & RESCUE

| CURVE TABLE |             |           |               |              |            |
|-------------|-------------|-----------|---------------|--------------|------------|
| CURVE #     | DELTA       | RADIUS    | CHORD BEARING | CHORD LENGTH | ARC LENGTH |
| C1          | 16° 27' 00" | 5455.39'  | N81° 17' 58"E | 1560.91'     | 1566.28'   |
| C1(R)       | 16° 26' 54" | 5455.39'  | N81° 17' 46"E | 1560.75'     | 1566.12'   |
| C2          | 4° 40' 50"  | 5455.39'  | N75° 24' 53"E | 445.54'      | 445.66'    |
| C3          | 11° 46' 10" | 5455.39'  | N83° 38' 23"E | 1118.65'     | 1120.62'   |
| C4          | 1° 51' 31"  | 5455.39'  | S74° 00' 04"W | 176.95'      | 176.95'    |
| C5          | 3° 58' 29"  | 5455.39'  | S87° 32' 14"W | 378.38'      | 378.46'    |
| C6          | 0° 09' 29"  | 5455.39'  | S85° 28' 15"W | 15.04'       | 15.04'     |
| C7          | 0° 03' 47"  | 34343.40' | S85° 11' 37"W | 37.74'       | 37.74'     |

ATMEDIA NORTHERN COLORADO INC.  
12 S FIDDLERS GREEN DR STE 205E  
GREENWOOD VILLAGE, CO 80111  
LI (COUNTY) - COMMERCIAL

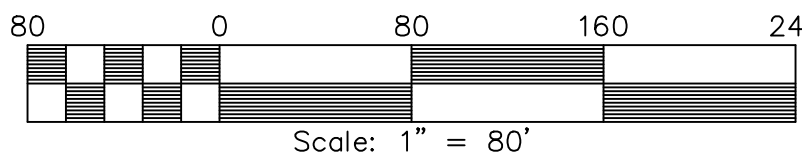
STANSBURY, DANA  
c/o HEIDUCK, DON  
521 SOUTHWEST DR  
CHEYENNE, WY 82001  
LI (COUNTY) - VACANT



CITY CONTROL MONUMENT  
"EAST"  
N=76966.42  
E=617016.21

CITY CONTROL MONUMENT  
"COLLEGE"  
N=59732.36  
E=608926.74

RAILROAD RIGHT-OF-WAY  
(±400' R/W)



#### DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: Donald F. Heiduck, owner in fee simple of the following described portion of Tract 1, H and B Tracts: Beginning at a point being the northeast corner of said Tract 1, H and B Tracts, Laramie County, Wyoming, monumented with a 3" brass cap WYDOT right-of-way marker; thence S.03°38'03"W., along the east line of said Tract 1, a distance of 483.00 feet; thence S.80°21'10"W., a distance of 1533.88 feet; thence N.00°06'34"E., a distance of 37.81 feet; thence S.79°29'47"W., a distance of 444.72 feet to a point on the west line of said Tract 1, monumented with a 1½" survey cap stamped "DMH PE & LS 558"; thence N.14°33'35"E., along said west line, a distance of 464.54 feet to the northwest corner of said Tract 1, monumented with a 3" brass cap WYDOT right-of-way marker; thence N.73°12'59"E., along the north line of said Tract 1, a distance of 334.52 feet to a 3" brass cap WYDOT right-of-way marker; thence continuing along said north line, along a curve, concave to the southeast, with a radius of 5455.39 feet, curve delta 16°27'00", arc length of 1566.28 feet and chord bearing of N.81°17'58"E., a distance of 1560.91 feet to the Point Of Beginning. Said lands containing 22.38 acres more or less. Has caused the same to be surveyed, vacated, replatted and known as HEIDUCK ADDITION, and does hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires and do hereby grant the easements for the purposes indicated hereon.

by: \_\_\_\_\_  
Donald F. Heiduck

#### ACKNOWLEDGEMENT

STATE OF WYOMING }  
COUNTY OF LARAMIE }

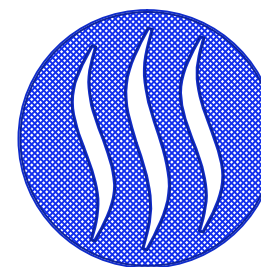
The foregoing instrument was acknowledged before me this \_\_\_\_ day of \_\_\_\_\_, 2015, by Donald F. Heiduck.

Notary Public, Laramie County, Wyoming

My Commission Expires: \_\_\_\_\_

## HEIDUCK ADDITION

A REPLAT OF A PORTION  
OF TRACT 1, H AND B TRACTS  
SITUATE IN THE N1/2 OF SECTION 12,  
T.13N., R.66W. OF THE 6TH P.M.,  
CITY OF CHEYENNE,  
LARAMIE COUNTY, WYOMING.  
PREPARED FEBRUARY, 2015



**STEIL SURVEYING SERVICES, LLC**  
**PROFESSIONAL LAND SURVEYORS**  
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273  
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789  
www.SteilSurvey.com • info@SteilSurvey.com

#### CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

#### NOTES

- BASIS OF BEARINGS - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "EAST" & "COLLEGE".
- A PORTION OF PROPOSED TRACT 2 OF THE SUBJECT PROPERTY FALLS WITHIN FEMA 100-YEAR SPECIAL FLOOD HAZARD AREA PER F.I.R.M PANEL #56021C1113F, DATED JANUARY 17, 2007
- ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾"x24" REBAR.
- WATER AND SEWER SERVICE TO BE PROVIDED BY CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES (BOPU) AND/OR SOUTH CHEYENNE WATER AND SEWER DISTRICT (SCWSD).
- A PORTION OF THE SUBJECT PROPERTY IS DESIGNATED AS FALLING WITHIN THE CITY OF CHEYENNE / LARAMIE COUNTY 100-YEAR FLOODPLAIN.
- DRAINAGE EASEMENT (UNDEFINED WIDTH) PLATTED WITH H AND B TRACTS TO BE CENTERLINE OF IRRIGATION TROUGH FOR DAIRY FARM / AGRICULTURAL PRODUCTION. OWNER HEREBY VACATES THOSE PORTIONS FALLING WITHIN THE BOUNDARY OF THIS PLAT.
- TRACT 2 IS DESIGNATED AND RESERVED AS A STORMWATER DETENTION AND CONVEYANCE EASEMENT AND IS TO BE DEDICATED TO THE CITY OF CHEYENNE THIS PLAT.

#### LEGEND

- SET 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾" x 24" REBAR
- FOUND ALUMINUM CAP STAMPED PELS 558"
- ⊙ FOUND IRON ROD
- RIGHT OF WAY MONUMENT
- (M) DENOTES MEASURED DATA THIS SURVEY
- (R) DENOTES RECORD PLAT DATA
- DENOTES FEMA 100-YR SFHA

#### VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE THAT PORTION OF TRACT 1, H AND B TRACTS INCLUDING THOSE PORTIONS OF UNUSED DRAINAGE EASEMENT (SEE NOTE 6) THERE WITHIN AND EXCEPT THOSE EXISTING EASEMENTS TO REMAIN AS SHOWN HEREON.

REVISED: 7/22/2015

\\2014 DWG\\14160 HB TRACTS\\14160 HEIDUCK ADD FINAL.DWG

#### APPROVAL

Approved by the City of Cheyenne Planning Commission this \_\_\_\_ day of \_\_\_\_\_, 2014.

Development Director, City of Cheyenne, Wyoming

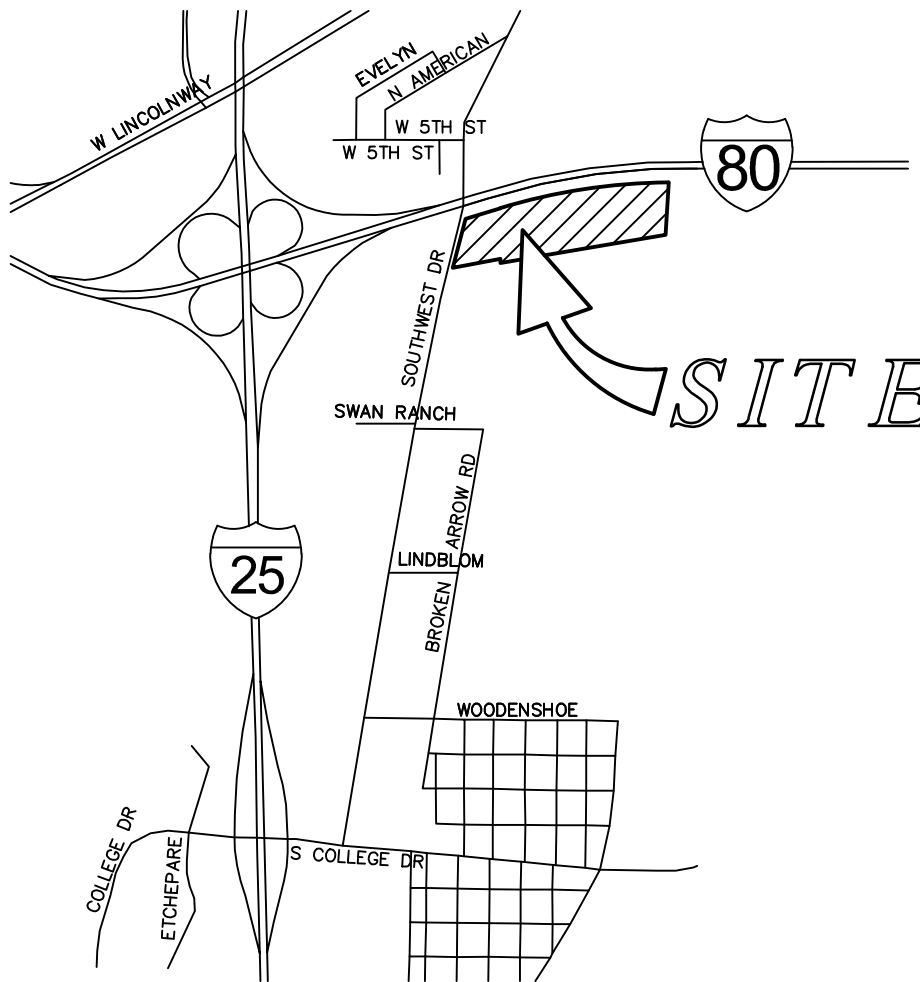
Approved by the Council of the City of Cheyenne, Wyoming this \_\_\_\_ day of \_\_\_\_\_, 2014.

Mayor \_\_\_\_\_ ATTEST: \_\_\_\_\_ City Clerk

TRACT 2  
H AND B TRACTS

GARRETT PROPERTIES LLC  
1330 GAYLORD ST NO 101  
DENVER, CO 80206  
AR (COUNTY) - RESIDENTIAL

#### VICINITY MAP



#### FILING RECORD

(NOT TO SCALE)